

25STCV04231 25STCV04231

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Case Number: 25STCV04231 Hearing Date: September 8, 2026 Dept: 510

No.

10 - William F. Best v. Consolidated Fire Protection District of Los Angeles

County, et al.

Defendants' Demurrer to Plaintiff's First

Amended Complaint

Defendants

Consolidated Fire Protection District of Los Angeles County and Anthony C.

Marrone demur to Plaintiff William F. Best's first amended complaint ("FAC") for declaratory relief.

Request

for Judicial Notice

Defendants request the Court take

judicial notice of Title 32 of the Los Angeles County Code ("Fire Code"). This

is subject to judicial notice under Evidence Code section 452(b). Defendants'

request for judicial notice is granted.

Demurrer

Defendants

argue that Plaintiff's claim for declaratory relief must fail because (1) Plaintiff

did not exhaust his administrative remedies before filing suit and (2) Plaintiff

improperly seeks declaratory relief to review an administrative decision made

by the Los Angeles County Fire Department. The Court will address each argument

in turn.

A. Exhaustion
of Administrative Remedies

The

Court is limited to the contents of the complaint and any judicially noticeable documents when ruling on a demurrer. General demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (Code Civ. Proc. §§ 430.30, 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Defendants

request the Court consider extrinsic evidence to assess whether Plaintiff exhausted administrative remedies—namely, that Plaintiff filed a permit application that was denied, and did not seek an appeal of the decision as required under the Fire Code. The Court cannot consider this extrinsic evidence. In ruling on a demurrer, courts “assume that the complaint’s properly pleaded material allegations are true and give the complaint a reasonable interpretation by reading it as a whole and all its parts in their context” but do not “assume the truth of contentions, deductions, or conclusions of fact or law.” (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The complaint must be “liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) “This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant.” (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1238.)

Here,

the FAC (and original complaint) does not refer to Plaintiff’s failure to appeal any permit application denial. Plaintiff alleges he exhausted all administrative remedies. (FAC, ¶ 4.) This is sufficient at the pleading stage.

B. Declaratory
Relief

Defendants

also argue that Plaintiff’s request for declaratory relief is improper because he is seeking review of an administrative decision made by the Los Angeles County Fire Department. While the FAC does not explicitly reference any permit

application, Defendants direct the Court to consider Plaintiff's prior allegations in his original complaint, which affirm that he did in fact file a permit application that was denied.

"Under the sham pleading doctrine, a plaintiff cannot avoid allegations that are determinative to a cause of action simply by filing an amended complaint which omits the problematic facts or pleads facts inconsistent with those alleged in the original complaint. . . . Instead, the plaintiff must satisfactorily explain such an omission. Failure to provide such an explanation allows the court to disregard the inconsistent allegations and read into the amended complaint the allegations of the superseded complaint." (Tindell v. Murphy (2018) 22 Cal.App.5th 1239, 1248.)

Here, Plaintiff does not provide any explanation why these allegations were omitted from the FAC. When considering these prior allegations and those in the FAC, it is clear Plaintiff's declaratory relief claim seeks review of an administrative decision by the Los Angeles County Fire Department. However, an administrative writ, not a declaratory relief claim, is the proper route to challenge an administrative decision. (See State of California v. Superior Court (1974) 12 Cal.3d 237, 249 ["It is settled that an action for declaratory relief is not appropriate to review an administrative decision."].)

The demurrer is sustained with leave to amend on this ground.

Defendant
Marrone

Defendants also argue that Plaintiff's naming of Defendant Marrone in his official capacity as Fire Chief is redundant because Plaintiff already named Consolidated Fire Protection District of Los Angeles County aka Los Angeles County Fire Department as a Defendant. The Court agrees. The FAC contains no allegations regarding the fire chief; thus, there is no basis for any relief against him.

The demurrer is also sustained with leave to amend on this ground.

Disposition

Defendants

Consolidated Fire Protection District of Los Angeles County and Anthony C.

Marrone's demurrer is sustained with 21 days' leave to amend.